

The Information Technology (Conditions of Service of the Controller) Rules, 2000

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[Rule THE-INFORMATION-TECHNOLOGY-CONDITIONS-OF-SERVICE-OF-THE-CONTROLLER-RULES-2000 of 2000](#)

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[The Information Technology \(Conditions of Service of the Controller\) Rules, 2000](#)

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[Ministry of Information Technology](#)

[G.S.R. 838\(E\). - In exercise of the powers conferred by section 87 of the Information Technology Act, 2000 \(21 of 2000](#)

[\), the Central Government hereby makes the following rules regulating the qualifications, experience and other terms and condition of service of the Controller, namely :-](#)

[1.](#)

[Short title and commencement.](#)

(1)

These rules may be called the Information Technology (Conditions of Service of the Controller) Rules, 2000.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires-

(a)

"Act" means the Information Technology Act, 2000 (

21 of 2000

);

(b)

"Controller" means the Controller of Certifying Authorities appointed under sub-section (1) of section 17 vested with powers and responsibilities under the Act.

3.

Educational qualifications and experience.

- No person shall be appointed as a Controller unless he has-

(i)

Bachelor's Degree in Engineering/Technology and 20 years' experience out of which 5 years should be at senior management levels in Information Technology (IT) or related sectors;

or

(ii)

Master's Degree in Science/Engineering/Technology and 18 years' experience out of which 5 years should be at senior management levels in Information Technology (IT) or related sectors;

or

(iii)

Doctorate in Science/Engineering related sectors or equivalent and 15 years' experience out of which 5 years should be at senior management levels in Information Technology (IT) or related sectors;

or

(iv)

Management Degree (MBA) with Bachelor's Degree in Engineering/Technology or Bachelor's Degree in Science and 18 years' experience out of which 5 years should be at senior management levels in Information Technology (IT) or related sectors.

4.

Terms and conditions of service of the Controller.

- The Controller shall hold office for a period of 3 years, but shall be eligible for reappointment:

Provided that no person shall hold office beyond the age of 65 years.

5.

Pay and allowances.

- The Controller shall receive pay and allowances as admissible to a Secretary to the Government of India including all the benefits that a Secretary is entitled to:

Provided that the pay and allowances of such a Controller shall be reduced by gross amount of pension and pension equivalent of gratuity or employer's contribution to the Contributory Provident Fund or any other form of retirement benefits, if any, drawn or to be drawn by him.

6.

Power to relax.

- The Central Government shall have power to relax the provisions of any of these rules with respect to any class or category of persons.

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